

25STCV22943 25STCV22943

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-03

Motion: PLAINTIFF RICHARD NEUDORFF'S MOTION TO FORM INTERROGATORIES – EMPLOYMENT LAW, SET ONE, AND REQUEST FOR MONETARY SANCTIONS [CRS No. 768930722900] [TENTATIVE] ORDER RE: PLAINTIFF RICHARD NEUDORFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND REQUEST FOR MONETARY SANCTIONS

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Case Number: 25STCV22943 Hearing Date: September 3, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

RICHARD NEUDORFF,

Plaintiffs,

vs.

GRID ALTERNATIVES GREATER LOS

ANGELES, INC., a Delaware corporation; ASHLEY CHRISTY, an individual; DOES

1-100;

Defendants.

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CASE NO: 25STCV22943

[TENTATIVE] ORDER RE: PLAINTIFF

RICHARD NEUDORFF'S MOTION TO FORM INTERROGATORIES – EMPLOYMENT LAW, SET ONE,
AND REQUEST FOR MONETARY SANCTIONS [CRS No. 768930722900]

[TENTATIVE] ORDER RE:

PLAINTIFF RICHARD NEUDORFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS

FOR PRODUCTION OF DOCUMENTS, SET ONE, AND REQUEST FOR MONETARY SANCTIONS

Dept. 731

September 3, 2026

8:30 a.m.

Matter No. 16

Moving Party: Plaintiff, Richard Neudorff

Opposing Party: Defendant, Grid Alternatives Greater Los Angeles, Inc.

Notice: OK

Background Facts

Pleadings

Plaintiff Richard Neudorff

("Plaintiff") sues Defendants GRID Alternatives Greater Los Angeles, Inc. ("GRID"), Ashley Christy ("Christy"), and Does 1-100 pursuant to an August 4, 2025, Complaint alleging claims for (1) Retaliation under FEHA, (2) Failure to Prevent Retaliation under FEHA, (3) Retaliation under Labor Code § 1102.5, (4) Retaliation under Labor Code § 98.6, (5) Wrongful Termination in Violation of Public Policy, and (6) Intentional Infliction of Emotional Distress.

Plaintiff alleges that he was employed by GRID Alternatives as a Junior Solar Supervisor and repeatedly complained about unsafe working conditions and racially discriminatory treatment of Hispanic employees, which Grid Alternatives failed to address, instead retaliating against Plaintiff as a result of his protected complaints, with Plaintiff thereafter suffering from intolerable working conditions that resulted in severe emotional distress, and Grid Alternatives ultimately terminating Plaintiff's employment in or around September or October 2023. Based thereon, Plaintiff alleges loss of income, emotional distress, and harm to his career opportunities.

Motion Before the

Court

On June 3, 2026, Plaintiff filed motions to compel further discovery responses from Grid Alternatives in connection with all requests in Plaintiff's Form Interrogatories—Employment Law ("FI-E"), Set One, and with all 58 requests in Plaintiff's Requests for Production of Documents ("RFP"), Set One.

Grid Alternatives timely opposed both motions on August 21, 2026, contending in relevant part that since June 3, 2026, Grid Alternatives has served supplemental discovery responses to FI-E, Set One, while in turn producing 350 pages of production (notably however without supplementing initial responses), thus mooted all relief requested by Plaintiff.

No reply from Plaintiff appears in the record.

Plaintiff's motions are now before the Court.

Motion to Compel
Further Interrogatory Responses, Request for Sanctions

Meet and Confer

A motion to compel further interrogatory responses must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Here, the moving papers attach a declaration from counsel showing sufficient meet and confer efforts preceded the filing of Plaintiff's interrogatories motion. (Interrogatories Motion, Roven Decl., ¶ 4.)

b. Motion
to Compel

The Court determines that the motion to compel component of Plaintiff's motion to compel further interrogatories is MOOT.

The question of whether a supplemental response in fact satisfactorily resolves (i.e., moots) the issues raised by a discovery motion is a matter best determined by the trial court in the exercise of its discretion, based on the circumstances of the case. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409 (*Sinaiko*).)

Here, Grid Alternatives' opposition shows that on August 4, 2026, Grid Alternatives served supplemental responses to FI-E, Set One, in full, with the responses attached as Exhibit E to the Declaration of Shannen Campbell accompanying the moving papers. A review of those responses shows substantive differences from the initial responses, with sufficient facially responsive information to meet Code of Civil Procedure obligations. Critically, no opposition appears in the record to dispute the sufficiency of these supplemental responses, despite emails showing Plaintiff's counsel's objection to unnamed supplemental responses, and Plaintiff's counsel's remark that Plaintiff would "let the Court make its ruling in relation to the motions." (Opposition, Campbell Decl., Ex. D, August 19, 2026, 8:39 AM Email.)

Under these circumstances, the issues raised in the motion to compel portion of the interrogatories motion has been satisfactorily resolved, i.e., mooted.

c. Request
for Sanctions

The Court otherwise DENIES
sanctions.

The court must impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

Here, despite the delay in providing responses, under the circumstances discussed above—contentious litigation (Compare Interrogatories Motion, Roven Decl., ¶ 4, with Opposition, Campbell Decl., ¶¶ 3-16, Exs. A-D), and Plaintiff's failure to reply to the opposition arguments despite knowledge of supplemental responses and purported deficiencies therein (Opposition, Campbell Decl., Ex. D, August 19, 2026, 8:39 AM Email)—an award of sanctions would be unjust.

Sanctions are thus DENIED.

Motion to Compel

Further Production Responses, Request for Sanctions

Meet and Confer

A motion to compel further production must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Here, the moving papers attach a declaration from counsel showing sufficient meet and confer efforts preceded the filing of Plaintiff's production motion. (Production Motion, Roven Decl., ¶ 4, Exs. 3-4.)

b. Motion
to Compel

i. Legal
Standard

A motion to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories, demands to produce, or requests for admission. (See Code Civ. Proc., § 2031.310, subd. (a); 403.)

To request further production, a

movant must establish: (1) good cause for the production (Code Civ. Proc., § 2031.310, subd. (b)(1); *Sinaiko*, supra, *Sinaiko* at p. 403); and (2) that a further response is needed because (a) the responding party's statement of compliance with the demand to produce is incomplete Code Civ. Proc., § 2031.310, subd. (a)(1)), (b) the responding party's representation that it is unable to comply is inadequate, incomplete, or evasive (Code Civ. Proc., § 2031.310, subd. (a)(2)), (c) the responding party's objection in the response is without merit or is too general (Code Civ. Proc., § 2031.310, subd. (a)(3); *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1127), or (d) if the responding party objected to the production of ESI on the ground that it is not reasonably accessible the movant can show that the (i) ESI is reasonably accessible or (ii) there is good cause for production of the ESI regardless of its accessibility (Code Civ. Proc., § 2031.310, subd. (e)).

ii. Discussion

After review, the Court GRANTS Plaintiff's motion in part and DENIES Plaintiff's motion in part.

The Court initially notes that while Grid Alternatives' interrogatories motion showed that it has supplemented its responses to FI-E, Set One, the production motion does not similarly show that Grid Alternatives ever served supplemental responses to RFP, Set One. At most, Grid Alternatives highlights its production of 350 responsive documents (Production Motion, Campbell Decl., ¶ 11), promising to supplement responses to comply with Code of Civil Procedure section 2031.280 (see Production Motion, p. 3 ["Defendant will supplement the response to request for production to categorize the responsive documents"]).

Moving to the merits, the Court addresses the requests for production in four groups as follows.

1. RFP, Set One, Nos. 1-2 and 4-24

In response to these requests, and subject to written objections including attorney-client privilege, Grid Alternatives responded by providing the following statement of compliance: "Defendant will produce all non-privileged documents responsive to this request." (See

Motion, Separate Statement at Responses to RFP, Set One, Nos. 1-2, 2-24.)

The statement of compliance is deficient.

Where a responding party agrees to comply with part of the demand to produce, the response should (1) state that the party will produce in part the things demanded for inspection, copying, testing, sampling, or any other related activity, (2) identify the things the party will produce, (3) state that these things are in the possession, custody, or control of the party and that the party has no objection to producing them, (4) state that the party is unable to comply with the rest of the demand, and (5) include a statement of inability to comply for the things the party will not produce. (Code Civ. Proc., § 2031.220.)

Here, because Grid Alternatives qualified its statement of compliance to “non-privileged” documents, the statement of compliance was only made in part. As a result, the statement required compliance with section 2031.220. However, as discussed above, the identical statement of compliance provided by Grid Alternatives in response to RFP, Set One, Nos. 1-2 and 4-24 fails to provide the additional information required by section 2031.220.

In opposition, Grid Alternatives argues that “Defendant has not withheld any documents based on privilege and has only retained the privilege objection to preserve it, [to] the extent there are documents we are unaware of.” (Opposition, p. 3:8-9.)

The Court has no objection with this position for purposes of this motion. A party may assert boilerplate privilege objections with its initial responses in order to preserve objections, where failure to provide a privilege log would merely be a basis for compelling a further response rather than finding waiver of objections. (See *Best Prods., Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181, 1188 [“Because defendant did assert the attorney-client and work product privileges in a timely manner, albeit in a boiler-plate fashion, the court erred in finding a waiver of privilege(s)”].)

However, Grid Alternatives’ argument focuses on objections rather than on the adequacy of the statement of

compliance, where the latter must comply with section 2031.220.

Last, the Court briefly notes that because Grid Alternatives admits that it has not withheld any documents based on privilege (Opposition, p. 3:8-9), it is unclear why Grid Alternatives responded to RFP, Set One, Nos. 1-2 and 4-24 with statements of compliance rather than statements regarding the lack of existence of responsive documents tied with a right to amend responses.

Plaintiff's motion is thus GRANTED as to RFP, Set One, Nos. 1-2 and 4-24.

2. RFP,
Set One, Nos. 3, 25

Next, the Court determines that Grid Alternatives' response to RFP, Set One, Nos. 3 and 25 are deficient.

Both responses seek to state that no responsive documents exist in connection with the posed request. (See Motion, Separate Statement, Responses to RFP, Set One, Nos. 3 ["None exist to Defendant's knowledge at this time. Discovery and investigation are ongoing. Defendant reserves the right to supplement this response as additional information becomes available"], 25 ["Subject to, and without waiving the foregoing objections, Defendant responds as follows: None exist."].)

Both responses are deficient for failure to comply with Code of Civil Procedure section 2031.230, which provides that a statement of an inability to comply with the production request "shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand" and shall moreover "specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party," with the "statement [being required to] set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item."

A comparison of the language required by statute with Grid Alternatives' responses shows the omission of the

diligent search and reasonable inquiry language, and the omission of the reason for why documents do not exist, e.g., they were lost, misplaced, or stolen, or were never in Grid Alternatives' possession.

Plaintiff's motion is thus GRANTED
as to RFP, Set One, Nos. 3 and 25.

3. RFP,
Set One, Nos. 26-58

Last, the Court finds that Grid Alternatives' responses to RFP, Set One, Nos. 26-58 are Code-compliant, if cursory.

Specifically, RFP, Set One, Nos. 26-58 seek production of documents in support of each and every of the 33 denials raised in Grid Alternatives' Answer to the Complaint in this action. (See Motion, Separate Statement, Responses to RFP, Set One, Nos. 26-58.)

In response to these requests, and subject to objections, Defendant provided an identical substantive response indicating that "Defendant refers Plaintiff to Plaintiff's operative complaint," all without reserving the right to further supplement responses at a future time.

Wisdom of the substance of the response aside, the response identifies a single document responsive to each of these requests and is therefore compliant.

Plaintiff's motion is thus DENIED
as to RFP, Set One, Nos. 26-58.

4. RFP,
Set One, Nos. 26-58

Grid Alternatives is ORDERED to provide supplemental responses responding to this Court's order above within 21 days of this order.

c. Request

for Sanctions

i. Legal
Standard

The court must impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).)

ii. Discussion

Here, the Court has granted relief, in part, in favor of Plaintiff. Moreover, the record fails to reflect that Grid Alternatives has remedied the discovery abuse by failing to provide supplemental, Code-compliant responses, as qualified above. Consequently, a basis for sanctions exists, even if Grid Alternatives has produced 350 pages of production in response to RFP, Set One—notably without the benefit of a section 2031.280 chart.

Moreover, sanctions are properly supported by a declaration from counsel. (Production Motion, Roven Decl., ¶ 5.)

Sanctions are thus GRANTED, in part, in the amount of \$1,630.00 as against Grid Alternatives.

However, sanctions are DENIED as against “Jackson Lewis,” which is a law firm, not a “person, party, [or] attorney” against whom monetary sanctions may be sought. (Code Civ. Proc., § 2023.040.)

Grid Alternatives is ORDERED to

remit payment of the above monies within 21 days of this order.

Plaintiff Richard Neudorff is
ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 3, 2026 _____

MARK C. KIM

Judge of the
Superior Court